
CAUT Report on Academic Freedom at the Faculty of Law, University of Toronto

October 2020

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This report concerns events surrounding the decision by the Dean of the Faculty of Law at the University of Toronto to terminate the hiring process following the selection of Dr. Valentina Azarova as Director of the International Human Rights Program (IHRP). This action was alleged to have been precipitated by pressure exerted by a sitting judge and donor to the University in apparent violation of Dr. Azarova's academic freedom.

The CAUT Academic Freedom and Tenure Committee has reviewed the evidence and testimony related to the case, much of which is publicly available. The Committee has concluded that there is sufficient evidence to support the allegations of a serious breach of Dr. Azarova's academic freedom such that CAUT censure of the University of Toronto Administration is warranted.

Background

The International Human Rights Program² was established by the Faculty of Law in 1987 with a mission to advance the field of international human rights law. The program first offered experiential learning opportunities for students through summer internships and volunteer working groups. In 2002, the program expanded to include an international human rights clinic and a human rights speaker series. Activities since then have ranged from direct client representation to policy work, with an emphasis on providing legal expertise to civil society. In 2010, the IHRP won a Lexpert Zenith award for its human rights advocacy work and in 2013 was awarded the Ludwik and Estelle Jus Memorial Human Rights Prize by the University of Toronto.

The IHRP's governance structure was modified in 2003 when the Faculty of Law established an Advisory Board comprised of prominent members of the legal profession and academia. In 2009, a Faculty Advisory Committee was created to further integrate the IHRP within the Faculty of Law's overall research mission and goals. The Faculty Advisory Committee discusses and approves all advocacy initiatives and provides strategic advice on all programming.

The Director of the IHRP is an academic administrative position responsible for providing clinical, educational, and administrative leadership and support. The Director oversees the IHRP's advocacy initiatives, clinic, speaker series, working groups, publications, internship, and mentorship programs. In addition, the Director is required to supervise students, develop and deliver clinical legal education programs, and organize and conduct workshops, conferences, and research.

Dr. Valentina Azarova is a highly recognized international legal practitioner, educator, and researcher. She obtained her L.L.B. from the University of Westminster in 2008 with first class honours and in 2014 earned her Ph.D in Public International Law from the Irish Centre for Human Rights at the National University of Ireland, Galway. She has held several research and teaching positions, including a postdoctoral fellowship with the Centre for Global Public Law and Law School at Koç University in Istanbul, a visiting research fellowship with the Central European University, and an adjunct lecturer position with Birzeit University in Palestine.

Dr. Azarova specializes in legal and human rights issues arising from immigration detention, the arms trade, and occupation and annexation. As part of this latter work, she has written several articles and book chapters on the application of international law and treaty obligations within the context of Israel's occupation of the Palestinian Territories. Dr. Azarova is also a human rights advocate and has been a legal advisor with the Global Legal Action

1. This report was prepared by CAUT staff and approved by the CAUT Academic Freedom and Tenure Committee.

2. Information about the program is taken from the IHRP website: <https://ihrp.law.utoronto.ca/>

Network³ and legal researcher with Al-Haq⁴, an independent human rights organization based in the West Bank, whose major donors include the European Union, the Swedish International Development Cooperation Agency, the Danish Representative Office in Ramallah, the Representative Office of Ireland in Palestine, and Norway's Representative Office to the Palestinian Authority.

Chronology of Events

In late July 2020, after a competitive search for the vacant position of Director of the IHRP, a three-person hiring committee consisting of Assistant Dean Alexis Archbold, Professor Audrey Macklin, and IHRP Research Associate Vincent Wong, unanimously selected Dr. Valentina Azarova as the top choice. Following the hiring committee's recommendation and subsequent reference checks, Vincent Wong contacted Assistant Dean Alexis Archbold on August 6 to ask if an offer had been made to Dr. Azarova. The Assistant Dean replied on August 9 indicating that she would be meeting with Robyn Hunter⁵ from the University's Human Resources Department to "discuss our offer to Valentina":

Hi Vince,

I hope you had a great week. I just returned to the city after being away with no access to the internet. I have meeting [sic] booked with Robyn tomorrow to discuss our offer to Valentina. I plan to get in touch with Valentina first thing Tuesday morning. She knows that we wouldn't be in touch again until this week.

I will let you know how things go.

Thanks!
Alexis

Alexis Archbold. LL.B.
Assistant Dean, J.D. Program
University of Toronto Faculty of Law

Dr. Azarova reports that Assistant Dean Archbold verbally offered her the directorship of the IHRP on August 11 by videoconference call. On the call, they discussed salary, pension, starting date, and term of the contract. Dr. Azarova indicates that she accepted the offer verbally on August 19.

On August 20, the Assistant Dean wrote to members of the hiring committee to inform them that the University was beginning the process of assisting Dr. Azarova with her work permit application. She also stated that the University wanted to find a way for Dr. Azarova to start before she received her work permit:

Hi Audrey and Vince—

Just letting you know that I am continuing to push this forward. I have spoken to Valentina 3x since we decided to go with her. She seems to get more excited each time I speak with her.

I spoke with an immigration lawyer yesterday, and will be speaking to the UT employment lawyers tomorrow. In a nutshell, we are hoping to work out a way for Valentina to start work before she has a Cdn work permit in hand. The

3. See <https://www.glanlaw.org/>

4. See <http://www.alhaq.org/>

5. Robyn Hunter also participated in the first round of interviews for the position.

immigration lawyer is suggesting she could have one in 2-3 months. We need to bridge the time between now and then.

Valentina is willing to start working remotely immediately. She plans to move to Canada by December.

I will let you know how it looks after the meeting tomorrow.

Thanks!

Alexis

Alexis Archbold. LL.B.

Assistant Dean, J.D. Program

University of Toronto Faculty of Law

As indicated by the Assistant Dean, the University proposed to initially hire Dr. Azarova as a consultant or contractor so that she could prepare for her role before her work on campus was set to begin on January 11, 2021. On August 21, Assistant Dean Archbold wrote to the hiring committee to report that the University's lawyers had confirmed that Dr. Azarova could begin work as an independent contractor while waiting for her work permit:

Continuing to have positive discussions with Valentina and others. Spoke to UT employment lawyers today and they confirmed that we can hire Valentina as an independent contractor and roll her into the permanent position when she has her permit in hand. Valentina is happy with this. Next step is to connect her with the employment lawyer directly to make sure that the 3 month timeframe that he gave me is in fact realistic in her circumstances.

Have a great weekend!

Alexis Archbold. LL.B.

Assistant Dean, J.D. Program

University of Toronto Faculty of Law

By e-mail on August 22, the Associate Dean introduced Dr. Azarova to Peter Rekai, an immigration lawyer the University hired to assist with her work permit application:

From: Alexis Archbold

Date: Sat, 22 Aug 2020 at 14:16

Subject: Meeting on Monday August 24th at 10:00 am EST

To: Peter Rekai, Valentina Azarova

Dear Peter and Valentina

It is my pleasure to introduce you. Valentina, Peter is the immigration lawyer with whom I have been speaking about our IHRP hire circumstances.

Peter, thank you very much for agreeing to meet with Valentina to discuss the routes to obtain a Canadian work permit (and ultimately permanent residency).

As you both know, we are keen to explore the best and most expedient route for Valentina to obtain a work permit no later than December 31 2020.

Peter, Valentina is available to meet on Monday August 24th at 10:00 EST. I will defer to you to send Zoom or other meeting details. I will not be joining you for this meeting.

Many thanks to you both. Have a lovely weekend!

Alexis

The Assistant Dean followed up with Dr. Azarova by e-mail on August 24 to ensure that she had spoken with the immigration lawyer. Dr. Azarova responded to confirm she had done so and provided a summary of the advice she had received:

On Mon, 24 Aug 2020 at 21:05, Alexis Archbold wrote:

Hi Valentina

I hope you are well. Just checking in—did you and Peter connect today?

Many thanks

Alexis

Alexis Archbold, LL.B.
Assistant Dean, J.D. Program
University of Toronto Faculty of Law
www.law.utoronto.ca
www.bfl.law.utoronto.ca

From: Valentina Azarova
Sent: August 24, 2020 9:00 PM
To: Alexis Archbold
Subject: Re: Checking in

Hi Alexis

Yes we did, and I was under the impression that he was going to speak with you so did not actively provide you with a debrief.

The long and short of it is that the way forward would be a double barrelled approach to a work visa, as all other paths would be too time risky at this stage and in the Covid circumstances: a) work visa application based on a market assessment and the inability to find a comparable Canadian candidate; and b) work visa application based on my contribution as a skilled professional to Canada. The second being less resource intensive. It [sic] it works out then the other route can be abandoned mid-way. He noted that to guarantee a result by sometime in Dec latest, and probably earlier, both applications need to be launched simultaneously as soon as possible. The good news is that neither require my presence at any point, and would upon their success guarantee my ability to get a work visa at the border upon my arrival to Canada.

On a call on September 1, the Assistant Dean told Dr. Azarova that she would receive a written contract during the week of September 7 confirming the details of her terms and conditions of employment that had been previously discussed. On September 3, the Assistant Dean wrote to Dr. Azarova to confirm that the hiring process was moving ahead smoothly:

On Thu, 3 Sep 2020 at 14:08, Alexis Archbold wrote:

Hi Valentina

Thank you again for meeting with me this week. As we discussed, I am taking several steps at this end to move things forward including: following up with the international law firm about the independent contractor agreement, drafting a summary of the terms of what would be included in a subsequent employment contract, and working with Peter to start the special contribution and LMIA [Labour Market Impact Assessment] processes to obtain your work permit. I have been in touch on all of these fronts and am waiting to hear back. I hope to be in touch to update you very soon.

Best
Alexis

On September 4, the Friday before the Labour Day weekend, the situation suddenly began to change. The chair of the hiring committee, Professor Audrey Macklin, was informed by Assistant Dean Archbold that a sitting Tax Court of Canada judge who is also an alumnus and major donor had contacted a fundraising official at the University. It is not clear how the judge learned about Dr. Azarova's selection as the hiring process was still confidential at that point. Professor Macklin was told the judge expressed objections to Dr. Azarova's appointment because of her work on Israel and Palestine. The Assistant Dean also said the judge would be calling the Dean of the Faculty of Law, Edward Iacobucci. Professor Macklin's notes from that day are as follows:

- a. Assistant Dean [Archbold] contacts me: the director of alumni/advancement (I think Jennifer Lancaster but I'm not sure) received a call from an alum about VA [Valentina Azarova], regarding VA's Israel/Palestine work.
- b. The alum is a tax judge and told the alum/advancement staff member that he intended to call Ed [Dean Iacobucci].
- c. I expressed my alarm and I expressed the hope that Ed would not be influenced by intervention by an alum on U of T hiring.⁶

On September 6 (Sunday of the Labour Day weekend), Dean Iacobucci called Professor Macklin to announce the hiring process was being terminated for two reasons. First, the Dean indicated it was improper to hire Dr. Azarova as an independent contractor before her work permit was secured. Second, he noted that during negotiations with the Assistant Dean, Dr. Azarova requested permission to pursue work overseas during part of the summer vacation period when no courses or programs were running at the law school. He indicated this arrangement would be highly inappropriate. When Professor Macklin raised a concern that Prof. Azarova's work on Israel and Palestine was playing a role in the Dean's decision, the Dean reportedly replied that "it is an issue, but given the other two issues, I don't need to get to the third issue."

6. Excerpts of Professor Macklin's notes were published online by the Globe and Mail on September 23, 2020, "Tax Court judge accused of pressuring U of T law school not to hire human-rights scholar identified."

On September 10, Assistant Dean Archbold wrote to Vincent Wong, the third member of the hiring committee, to inform him of the decision to rescind the offer to Dr. Azarova:

From: Alexis Archbold
Sent: Thursday, September 10, 2020 5:27 PM
To: Vincent Wong
Cc: Audrey Macklin
Subject: RE: IHRP Director Update

Hi Vince,

Thanks for checking in. Unfortunately, Valentina's immigration situation turned out to be more complicated than we thought, and the tools at our disposal to address it were fewer than we hoped. As a result, after conferring with senior HR leaders, we concluded yesterday that we cannot proceed with her candidacy. I informed Valentina today. I know this is disappointing news.

We are switching gears very quickly to look again at the Canadian candidates whom we considered. The Dean will be conducting 2nd/3rd round interviews next week.

I will let you know how things go.

Alexis

By videoconference call, the Assistant Dean informed Dr. Azarova that “we hit a wall”. While it was the University that had initially suggested that Dr. Azarova be hired as a consultant, the Assistant Dean now told her that immigration lawyers “indicated very high risks” to the University if it was to engage Dr. Azarova on a short-term consultancy contract. The Assistant Dean also indicated the Program has been without a director for too long to wait until the work permit is available, and that there were other “things going on at the law school” that she did not specify.

On September 11, Professor Macklin resigned from the hiring committee and as chair of the Faculty Advisory Committee of the IHRP. Soon afterwards, the rest of the Faculty Advisory Committee – Professors Vincent Chiao, Anna Su, and Trudo Lemmens – also resigned. On September 12, two former IHRP directors, Carmen Cheung and Samer Muscati, wrote to the Dean to express their concerns about what they viewed as political interference in the hiring process:

We are...alarmed by the sequence of events, which strongly suggests improper external interference by a member of the judiciary in the hiring of the IHRP Director as well as a serious breach of confidentiality in the hiring process. Given that the essential nature of international human rights practice is to hold the powerful to account, any IHRP Director and their work will unavoidably be the subject of criticism from some quarters.

On September 15, the remaining staff at the IHRP, Ashley Major and Vincent Wong, met with Assistant Dean Archbold to discuss IHRP programming for the upcoming year, including the abrupt cancellation of Dr. Azarova's candidacy and the Dean's decision to take over the search process. Concerns were raised about undue and improper interference into the hiring committee's process. Wong expressed his position that Dr. Azarova's offer should be reinstated and asked the Assistant Dean whether there was a possibility that Dean Iacobucci would reconsider his decision. The Assistant Dean replied that it was very unlikely. On September 16, Wong resigned from his paid position as Research Associate:

From: Vincent Wong
 Sent: Wednesday, September 16, 2020 8:54 PM
 To: Alexis Archbold
 Subject: [IHRP] Notice of Resignation
 Importance: High

Dear Alexis,

It is with a heavy heart that I send you this e-mail to convey my resignation from my Research Associate position at the International Human Rights Program with two weeks' notice.

I have put a lot of thought into this decision and it was an incredibly difficult one to make but one that I strongly believe in. When I volunteered to join you and Audrey on the hiring committee to select a new director, I did it in good faith that our process would be fair and transparent and that our choice, given our expertise and institutional knowledge, would be respected. You, Audrey, and I came to the conclusion that Valentina, given her tremendous experience, innovative work, sharp mind, was the consensus number one choice. Consequently, an offer was extended to her.

It is my view that since then, the director search process has not been handled with objectivity, fairness, and transparency. This sudden turn of events and the withdrawal of Valentina's offer raises serious concerns about abuse of process, improper external influence, and academic freedom. I was hoping upon hope that the administration would recognize these serious issues and take steps to redress them, and in particular to reinstate Valentina as the director. However, this does not seem like a realistic possibility. If I am to be completely honest, I feel like trust has been irrevocably broken. As a result, I feel that I must move on from the IHRP.

Facing mounting criticism, the Dean issued a statement to members of the Faculty of Law on September 17. He denied that an offer of employment was made, and stated that any decision about hiring was not influenced by external pressure:

From: lawprofs-I All professors at law school on behalf of Deans Office Law
 Sent: Thursday, September 17, 2020, 6:34 PM
 To: LAWPROFS-L@LISTSERV
 Subject: Message from the Dean

Dear Colleagues,

I am writing this letter, which I will share with members of the broader community making inquiries, to offer more details about the search for a non-academic director at the International Human Rights Program. Let me say at the outset that assertions that outside influence affected the outcome of the search are untrue and objectionable. University leadership and I would never let outside pressure to be a factor in a hiring decision.

Searches at this University are and ought to be confidential, but I will say the following. Even the most basic of the conjectures that are circulating in public, that an offer was made and rescinded, is false. While conversations with a candidate had been ongoing, no offer of employment was made because of legal constraints on cross-border hiring that meant that a candidate could not meet the Faculty's timing needs. Other considerations, including political views for or against any candidate, or their scholarship, were and are irrelevant.

As the Dean's advisory committee leading the search understood – and as was stressed to me on several occasions by the non-academic administrator to whom the director would report – the timing needs existed because of the absence of a director at the moment, and the hope that a new director could mount a full clinical and volunteer program for students this academic year. Unfortunately, the opportunity to assess other candidates was derailed by this unnecessary controversy, and the search was cancelled. All candidates, including candidates in the recent search, are more than welcome to apply when the search resumes.

In the meantime, it will be necessary for the Faculty to review the IHRP's plans in the short run without a director in place. We will also consider how best to take the program forward over the long run as well. As one of my colleagues put it, I am confident we can take advantage of this pause to make the International Human Rights Program even more successful than it has been in the past.

Sincerely,
Edward Iacobucci
Dean and James M. Tory Professor of Law

In its official response to a letter written by CAUT Executive Director David Robinson, the University administration echoed the Dean's contention that no offer of employment was made and that outside pressure was not a factor in the decision:

From: President
Sent: September 17, 2020 10:19 AM
To: Monique Cooke
Subject: Re: Letter from David Robinson, Executive Director, Canadian Association of University Teachers re. Academic Freedom

Good day Mr. Robinson,

Thank you for your message to the Office of the President and for sharing your thoughts and concerns on this matter. Searches at the University of Toronto are confidential and bound by policies and applicable privacy legislation. With respect to a recent search for a non-academic staff member in the International Human Rights Program (IHRP), we can confirm that no offer of employment was made to any candidate, and therefore, no offer was revoked. The Faculty of Law has cancelled the search. No offers were made because of technical and legal constraints pertaining to cross-border hiring at this time. The Faculty of Law will be reviewing program needs, and when and if the search resumes, all candidates are encouraged to apply or re-apply.

Best wishes!
Rheema Farrell
Administrative Assistant, Correspondence Unit
Office of the President
University of Toronto
Room 206, 27 King's College Circle
Toronto, ON Canada M5S 1A1

On October 7, nine faculty in the law school wrote to the Provost of the University of Toronto to express their concerns about how, in their view, the Dean's actions subverted the collegial hiring process:

The Dean of Law wields extraordinary authority for a community that calls itself self-governing. This is the case not only as concerns the IHRP but also as concerns curriculum matters, faculty appointments, and other subjects that are of concern to the law school community. It is, nevertheless, startling that the Dean intervened in the appointment of the IHRP Director without referring the matter back to the hiring committee that identified a short list and interviewed candidates. He took these steps, moreover, by informing rather than consulting with our colleague, Professor Audrey Macklin, who chaired the hiring committee, nor with other colleagues who sit on the IHRP academic advisory committee. Claiming that 'legal constraints on cross-border hiring' barred Dr. Azarova's timely entry into Canada, the Dean would not consider Professor Macklin's advice that her immigration status was eminently solvable, and that the hiring committee had unanimously concluded that there were no qualified Canadians in the pool. No one in a position of authority, it seems, wanted to hear this. For this reason, we view immigration questions, and for that matter allegations that no offer had been made to Dr. Azarova, as pretextual.

On October 14, the University announced an "impartial review" into the affair.⁷ On October 15, CAUT issued a statement⁸ calling the University's review flawed for not addressing academic freedom concerns or questions about outside interference in the hiring process. Additionally, the report of the review will be delivered to three senior administrators – the Vice-President of Human Resources and Equity, the Dean of Law, and the Provost – who could be implicated by their conduct in the case. Both the Dean and the Vice-President of Human Resources and Equity have publicly declared that no job offer was made to Dr. Azarova, that the decision not to proceed with her candidacy was based on immigration impediments, and that external intervention did not affect the outcome. Moreover, in a message to the law school community, the Dean indicated he requested the review "in order to correct misconceptions and misunderstandings". The combined effect of the public declarations and stated purpose of the review thus appear intended to "correct misconceptions and misunderstandings" in the form of accounts that are inconsistent with the administration's position. This cannot be regarded as impartial.

Analysis and Conclusions

The central issues at dispute in this case revolve around 4 questions:

- 1) Was an offer of employment made, accepted, and then rescinded?
- 2) Were the University's stated grounds for not proceeding with the hiring of Dr. Azarova pretextual?
- 3) Do principles of academic freedom apply in this case insofar as it involves the appointment of an academic administrator?
- 4) Is there evidence that the hiring process was influenced by outside pressure based upon objections to Dr. Azarova's research and/or political views?

7. <https://hrandequity.utoronto.ca/memos/statement-on-the-search-process-for-a-director-of-the-international-human-rights-program-at-the-faculty-of-law/>

8. <https://www.caut.ca/latest/2020/10/u-t-investigation-hiring-controversy-flawed-caut>

1. Was an offer of employment made, accepted, and rescinded?

The documentary evidence strongly suggests that Dr. Azarova was offered the position on August 11 and accepted on August 19. On the August 11 call, the Assistant Dean discussed salary, pension, starting date, and term of the contract. Dr. Azarova agreed to these initial terms on August 19. Subsequent e-mail exchanges between the Assistant Dean, Dr. Azarova, and the immigration lawyer clearly demonstrate that the parties were seeking to negotiate the final details of a written contract and to obtain the appropriate work permit. In her September 3 e-mail, the Assistant Dean is explicit that she is “drafting a summary of the terms of what would be included in a subsequent employment contract.”

Based upon the evidence, it can be reasonably concluded that the University and Dr. Azarova entered a verbal employment contract on August 19. The subsequent decision to not proceed with her hiring amounted to a breach of that verbal contract.

Even if no offer had been made, however, this would not diminish concerns about external influence over the hiring process. While the Dean and members of the hiring committee disagree about whether Dr. Azarova was offered the directorship, and the determination of that would have potential legal implications under employment law, it would nevertheless remain unacceptable and a violation of academic freedom if external pressure affected the outcome of the search process.

2. Were the University’s grounds for not proceeding with the hiring of Dr. Azarova pretextual?

The University claims that the decision to end employment discussions with Dr. Azarova was due to immigration-related complications. Principally, the University indicated that the plan to hire Dr. Azarova as an independent contractor until her immigration status was secured was “improper”. This is even though it is the University that requested and initially approved the arrangement.

In her e-mail of September 3 to Dr. Azarova, the Assistant Dean states that she is “following up with the international law firm about the independent contractor agreement.” It is therefore conceivable that legal counsel may have subsequently raised previously unidentified issues about the arrangement, although specifics about its legality were not provided to Dr. Azarova. Even if the plan to engage Dr. Azarova temporarily as an independent contractor was deemed to be a problem, however, it would be difficult to see this as a justifiable reason for terminating the hiring process entirely. The immigration lawyer indicated Dr. Azarova would receive her work permit within two to three months at most. The position had been vacant for over a year and interviews were not completed until the end of July. It seems suspect that the University in early September was now insisting that it could not proceed with Dr. Azarova’s appointment because she could not start immediately. It is highly improbable that another candidate would be available to commence work within this time frame. In fact, less than a week after Dr. Azarova was informed that the offer was being revoked, the Dean announced that the search for a new Director would be suspended. If the consultancy proposal was an issue, why was the University unwilling to wait for two or at most three months for Dr. Azarova to obtain her work permit?

The second element of the Dean’s rationale relates to Dr. Azarova’s request that she be able to be absent from campus to continue her international human rights work during part of the summer vacation period when no courses or programs were running at the law school. The Dean cited this as improper. If this were indeed inappropriate, however, should not have Dr. Azarova been informed and asked to decide whether she would accept giving up this request? Instead of engaging in further negotiations on this matter, the Dean simply decided to stop the hiring process in its tracks. Neither rationale for ending talks with Dr. Azarova seems plausible.

3. Do principles of academic freedom apply in this case involving the appointment of an academic administrator?

In its e-mail response to the Executive Director of CAUT on September 17 and in subsequent public communications, the University has emphasized that the Director of the IHRP is a “non-academic staff” position. This seems to imply that principles of academic freedom do not apply. In their September 12 letter to the Dean, the former directors of the IHRP echo this when they assert that: “As a staff appointment, the position of IHRP Director does not confer academic freedom.” The Director position, as noted above, is administrative, but also includes teaching and research components.

CAUT has addressed this issue in its Policy Statement on Academic Freedom for Academic Administrators.⁹ The policy clearly rejects any distinction between the protections for academic freedom enjoyed by ordinary faculty members and that of those serving in administrative posts. The statement describes academic freedom as “indivisible and undiminished in all academic and public settings, whether or not these settings are aligned primarily with teaching, research, administration, community service, institutional policy, or public policy.” There is no valid distinction to be made between the academic freedom rights of academic administrators and those of all other members of the faculty. Academic administrators must be able to rely on the same protections in their academic activities as those in non-administrative academic positions.

4. Is there evidence that the hiring process was influenced by outside pressure based upon Dr. Azarova’s research and/or political views?

The sequence of events clearly shows that the hiring process was proceeding smoothly prior to September 4 when the University was contacted by the judge and donor. The Assistant Dean, as late as September 3, was proceeding with drafting a written contract and ensuring the work permit process was underway. The Dean’s subsequent rationale for rescinding the job offer, as discussed above, is not credible and appears to be pretextual.

The Dean has not denied that he was contacted by the judge, although the details of that conversation are not known publicly. The Dean admitted to Professor Macklin that Dr. Azarova’s research on Israel’s occupation of the Palestinian Territories was “an issue”, but not one that he needed to address because of the purported immigration and work permit issues. However, if the immigration issues were pretextual, then one is left to conclude that Dr. Azarova’s research and advocacy around Israel and Palestine were a determining factor in the Dean’s decision.

Based on a balance of probabilities, there is reasonable evidence to conclude that the rescinding of Dr. Azarova’s appointment was motivated by her research and political views regarding Israel and Palestine. On this basis, the CAUT Academic Freedom and Tenure Committee concludes that her academic freedom as defined in CAUT policy was violated, and collegial hiring practices in the Faculty of Law were breached.

9. <https://www.caut.ca/about-us/caut-policy/lists/caut-policy-statements/policy-statement-on-academic-freedom-for-academic-administrators>